

CONTROLLED UNCLASSIFIED INFORMATION (CUI)

Control Number: JA-25-C-0167

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: Integrated Logistics Support Center (ILSC)/Small Tactical Radar – Lightweight Synthetic Aperture Radar/Ground Moving Target Indicator Extended Range (STARLite-ER) System Sustainment Support Services

Authority: 10 United States Code 3204(a)(1) as implemented by Federal Acquisition Regulation (FAR) 6.302-1(a)(2) - Only One Responsible Source and No other Supplies or Services Will Satisfy Agency Requirements.

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED]

Title: [REDACTED]

Email: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED]

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Technical Representative:

Typed Name: [REDACTED]

Title: [REDACTED]

Email: [REDACTED]

Requirements Representative:

Typed Name: [REDACTED]

Title: [REDACTED]

Email: [REDACTED]

[REDACTED]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:

Name:

[REDACTED]

[REDACTED]

[REDACTED]

Legal Counsel:

[REDACTED]

[REDACTED]

[REDACTED]

Command Advocate for Competition:

[REDACTED]

[REDACTED]

[REDACTED]

Justification and Approval
for Other than Full and Open Competition – FAR Part 6

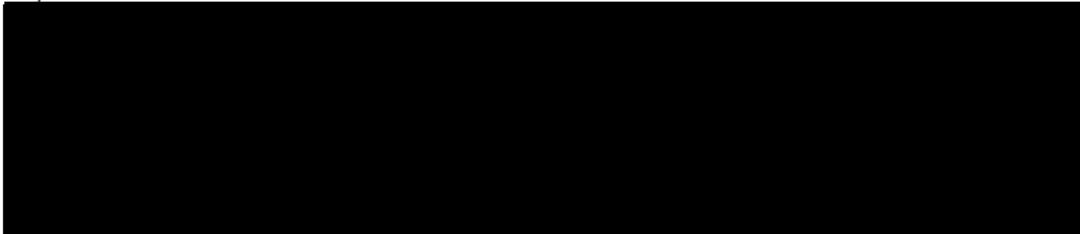
1. Contracting Activity: The United States Army Contracting Command - Aberdeen Proving Ground (ACC-APG), Division C, 6515 Integrity Court, Building 4310, Aberdeen Proving Ground, MD 21005-1846

2. Description of Action: The Communication-Electronics Command (CECOM), Integrated Logistics Support Center (ILSC), Intelligence Electronic Warfare & Sensors (IEW&S) Directorate requires a modification to execute a five-year extension to the current Indefinite Delivery/Indefinite Quantity (IDIQ) contract (W56JSR-20-D-0006) with Northrop Grumman Systems Corporation (NGSC) of 1580B West Nursery Road, MS B585, Linthicum Heights, Maryland 21090. The contract will include Cost-Plus-Fixed-Fee (CPFF) and Cost no Fee contract line-item numbers (CLINs). This modification will extend the [REDACTED] and increase the contract ceiling of [REDACTED]. The appropriation utilized for this effort will be [REDACTED]. Contract award is anticipated by [REDACTED].

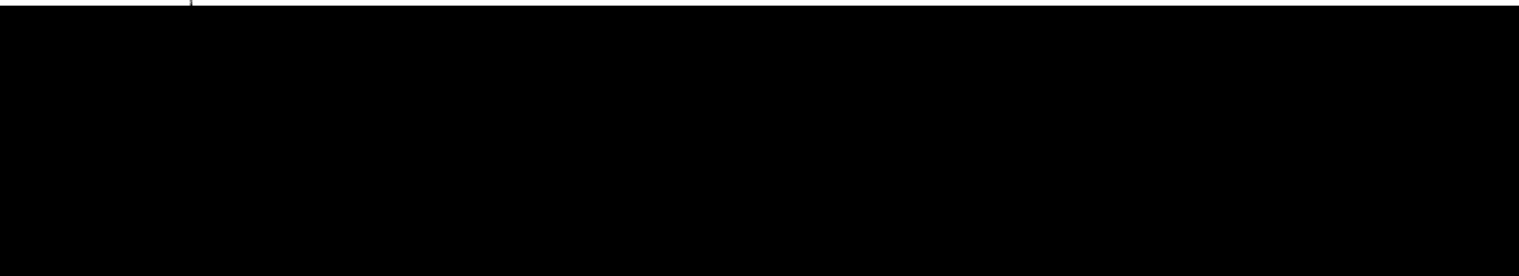
This action is a follow-on to contract W56JSR-20-D-0006, which was awarded under authority FAR 6.302-1 (10 U.S.C. 2304 (c)(1)). The previous contract's procurement history is addressed in Section 10 below. See paragraph 10b of this Justification and Approval (J&A) for the full narrative included in paragraph 7, Actions to Increase Competition, of the previous J&A. Based on an analysis of that previous paragraph 7, this J&A 25-C-0167 does not require one-level above approval authority elevation in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 206.304 and Procedures, Guidance, and Information (PGI) 206.304 for a failure to complete planned actions.

3. Description of Supplies/Services: The proposed action is for Test and Inspect (T&I) services, repair services, technical support services, repair parts/material replenishment, and Diminishing Manufacturing Sources and Material Shortages (DMSMS) material inventory replenishment for the Small Tactical Radar - Lightweight Synthetic Aperture Radar/Ground Moving Target Indicator – Extended Range System (STARLite SAR/GMTI – ER or STARLite-ER) system [REDACTED]. The STARLite-ER is a lightweight, high-performance, all-weather, multi-functional radar system that is integrated onto the multi-purpose Gray Eagle Unmanned Aircraft (UA).

[REDACTED]


Table 1 – Repair


The anticipated ordering period of this extension is . The total estimated cost for the extended five-year ordering period is , which is based on the Independent Government Estimate (IGE). The IGE estimating methodology is derivative of historical data/pricing gained from the current contract with NGSC. The size and scope of the extension will be extremely similar to the current contract. 


Table 2 – IGCE


4. Authority Cited: 10 United States Code 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2) Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Reason for Authority Cited: NGSC is the STARLite-ER Original Equipment Manufacturer (OEM) and the only source that can meet the Government's requirements. The STARLite-ER system was established pursuant to a FAR Part 15 Contracting by Negotiation, full and open competition in  through solicitation W15P7T-07-R-P406. The source selection was based on a Government assessment of the offerors' proposed system design and feasibility associated with a STARLite-ER

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capability. Offerors had to adhere to performance specifications outlined in the solicitation and participate in a flight test. NGSC independently developed a unique STARLite-ER capability that met the performance specifications of the original solicitation and was deemed the winner of the competition, and thus, received contract W15P7T-08-C-P427 in [REDACTED]

NGSC presently maintains sole authority over the hardware technical data package (TDP), but the Government has obtained the required software source licenses to allow for [REDACTED]

[REDACTED] software. Thus, the current STARLite-ER design is comprised of an independently developed system with sole hardware TDP ownership controlled by NGSC.

In pursuit of increasing competition and saving cost, the Government continues to ascertain whether NGSC is willing to sell the hardware TDP rights, and if so, at what cost. The Government attempted to obtain STARLite hardware TDP rights via email on [REDACTED]. NGSC's email response on [REDACTED] reiterated its desire to maintain sole ownership and will not sell the TDP rights at this time. The Government's attempted to obtain the rights a second time via email on [REDACTED] and NGSC responded on [REDACTED] that their stance remains the same in that they will not sell the TDP.

As a result of the Government's inability to procure the hardware TDP from NGSC, the Government considered the practicability of reverse engineering. The Government recognizes that a reverse engineering effort would require gathering technical experts that are not readily available, and would include complex tasks associated with extremely volatile technical activities that reduce the probability of successfully executing an endeavor, [REDACTED]

[REDACTED] Along with these risks associated with rapidly changing environments and continuous evolution of software and related technology, the Government estimates it would take another source approximately [REDACTED] to reverse engineer, conduct mandatory tests, and validate results. [REDACTED] to reverse engineering the hardware and software to include all required documentation (new drawings, interface control documents, software code, etc.) and [REDACTED] to complete testing and airworthiness qualifications. This projected [REDACTED] period represents an unacceptable delay that would severely impact the mission and pose operational, security, and safety risks for Warfighters that rely upon this critical system on the battlefield.

The feasibility of reverse engineering the STARLite-ER hardware TDPs to enable competition is not only considered extremely high-risk for the reasons set-forth above, but competing the requirements would also present substantial duplication of costs. Specifically, efforts to replace the currently fielded system would not be advantageous, nor cost effective, because of the significant cost investment that has already [REDACTED]. In addition to this [REDACTED] already invested in STARLite SAR/GMTI, [REDACTED] would

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be required to reverse engineer the hardware TDPs, representing a significant duplication of costs that would not be recovered through competition. This estimate was derived from the business case analysis (BCA) entitled "Lifecycle Support Business Case Analysis Type II for Product Manager Robotic and Unmanned Sensors on STARLite Synthetic Aperture Radar Ground Moving Target Indication Mode Program." A full and open competition analysis for the STARLite-ER system support was conducted and determined not feasible via a market survey and BCA. First, a market survey indicated that vendors other than NGSC would have to reverse engineer the STARLite-ER hardware TDP items to meet the Government technical requirements. Second, the BCA analyzed the effect of introducing a [REDACTED]

[REDACTED] This estimated cost is comprised of introducing and managing a [REDACTED]

Consequently, reverse engineering the hardware TDP is considered extremely high-risk and would present unacceptable levels of performance, unacceptable schedule delays, and significant duplication of costs to the program. Even if another contractor were to attempt to reverse engineer the effort, there is no guarantee that it would result in a successful or viable alternative solution. A reverse engineering endeavor will negatively affect mission capability and readiness, thereby endangering the Warfighter who depends on the STARLite-ER tactical responsiveness of wide area, near real-time reconnaissance, surveillance, and target acquisition capabilities. Currently, the only viable option is to obtain the lay-in materials and services from NGCS.

6. Efforts to Obtain Competition: A Sources Sought Notice was published on [REDACTED] details of which are in the market research section of this document. [REDACTED]

a. Effective competition: Competition is not feasible at this time absent TDPs. The Contracting Officer will publish the notices required by FAR Subpart 5.201, "Synopses of Proposed Contract Actions" and the Government will assess any responses accordingly. [REDACTED]

7. Actions to Increase Competition: The Government will continue to conduct market research and monitor the marketplace in hopes of discovering alternative sources of supplies and services. The continued market research will help detect changes in the market that would enable future actions for supplies and services to be obtained

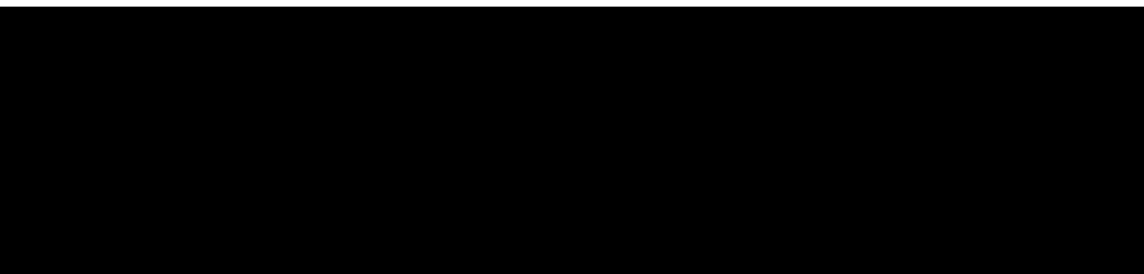
through competition. The Government will continue to investigate the possibility of procuring the necessary TDP rights to either perform sustainment organically or competitively. The Government analyzed the components to determine if any of them are commercial and could be competed. After the analysis it was determined that the components are not available commercially. The requirement will be synopsisized, with all responses considered.

8. Market Research: A sources sought notice was published on SAM.gov [REDACTED]. The notice intended to identify sources capable of performing system support functions required to deploy and maintain the operational capability of the STARLite-ER system. The Government only received one (1) response, and it was from NGCS. This supports the fact that NGSC is genuinely the OEM and the only source capable of providing support services for the STARLite-ER system. The Government's attempted to obtain the TDP rights via email [REDACTED] from NGSC. NGSC responded [REDACTED] that they refused to sell the TDP. The Government determined that the outcome of the notice is undoubtedly a result of NGCS distinguishing themselves as the sole owner of the hardware TDPs, and that no other source is currently capable of successfully executing this requirement.

9. Interested Sources: As explained in Section 8, no other sources responded to the sources sought notice except NGCS. To date, no other sources have written to express an interest.

a. Procurement History:

Table 3 – Contract History



The sole source contracts noted above were supported by FAR an approved Part 6 "Justification and Approval for Other than Full and Open Competition" documents. Section 7 "Actions to Increase Competition" of the documents were inclusive of continuous market research and inquiry upon OEM's disposition for selling the hardware TDP rights. The market research efforts were designed for continuously

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assessing the market conditions with hopes of discovering alternative sources of supplies and services, which would lead to increased competition. Accordingly, the Government market research efforts have been conducted on a recurring basis for which the results are provided in Section 8 of this document. In summary, no new sources of supplies or services have been discovered. Furthermore, the Government continues to inquire about NGCS's willingness to sell the hardware TDP rights, with the most recent request [REDACTED]. NGCS desires to maintain sole ownership of all rights (see Section 5).

b. Other facts: Paragraph 7 of the previous J&A states, "The Government will continue to conduct market research and monitor the marketplace in hopes of discovering alternative sources of supplies and services. The Government will continue to investigate the possibility of procuring the necessary TDP rights to either perform sustainment organically or competitively." In an effort to fulfill the Actions to Increase Competition the Government conducted market research [REDACTED] and attempted to purchase the TDP [REDACTED]. Since the Government fulfilled its Actions to Increase Competition, this J&A will not require one-level above approval authority elevation in accordance with DFARS 206.304 and PGI 206.304 for a failure to complete planned actions

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of Small Tactical Radar – Lightweight Synthetic Aperture Radar/Ground Moving Target Indicator Extended Range (STARLite-ER) System Sustainment Support Services for a five-year ordering period, in [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 United States Code 3204(a)(1) as implemented by FAR 6.302-1(a)(2) Only One Responsible Source and No other Supplies or Services Will Satisfy Agency Requirements, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

[REDACTED]